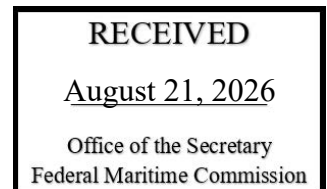


BEFORE THE
FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges



KAMORDEEN A. GANIU, INDIVIDUALLY	)	Docket No. 26-09
AND D/B/A GLOBAL KINGS LOGISTICS,	)	
	)	
Complainant,	)	
	)	
v.	)	
	)	
MEDITERRANEAN SHIPPING COMPANY	)	
(USA) INC. and MSC MEDITERRANEAN	)	
SHIPPING COMPANY S.A.,	)	
	)	
Respondents.	)	



Docket No. 26-09

Proposed Verified First Amended Complaint

PROPOSED VERIFIED FIRST AMENDED COMPLAINT

Complainant Kamordeen A. Ganiu, individually and doing business as Global Kings Logistics, appearing pro se, alleges as follows:

I. NATURE OF THE ACTION

1. This is a formal complaint under 46 U.S.C. § 41301 challenging an August 1, 2024 invoice that assessed \$84,138.00 in demurrage on three identified bills of lading and containers connected with international ocean transportation from United States ports to Tin Can Island, Lagos, Nigeria. MLA-APP 37, 40-42.
2. The original complaint named Mediterranean Shipping Company (USA) Inc. ("MSC USA"). MSC USA moved to dismiss on the ground that it is an agent rather than the ocean common carrier. Documents 8-9.
3. This amendment adds the entity identified in the invoice and bills of lading as carrier and principal, MSC Mediterranean Shipping Company S.A. ("MSC S.A."), as an additional respondent, while retaining MSC USA as a respondent for its alleged invoicing, collection, and agency conduct performed on MSC S.A.'s behalf.
4. Complainant does not ask the Commission to vacate, modify, or enjoin the New York judgment described below. He requests an independent determination of the federal invoice and unreasonable-practice violations described herein and relief within the Commission's Shipping Act

authority.

II. PARTIES

5. Complainant Kamordeen A. Ganiu resides at 1035 Clarkson Avenue, Apt. 7A, Brooklyn, New York 11212. His email is info@gklshipping.com. At the three relevant shipment dates — June 24, 2021, March 15, 2022, and August 1, 2022 — Ganiu was a sole proprietor doing business as Global Kings Logistics; held FMC Ocean Transportation Intermediary (NVOCC) Organization and License No. 026671; maintained a published NVOCC tariff reported at www.dpiusa.com; and maintained the required financial responsibility through Hudson Insurance Company Bond No. 10106685, \$75,000, effective July 24, 2020. MLA-APP 40-42, 61-62. He accepted responsibility for all charges applicable under the governing tariff or service contract and was therefore a shipper under 46 U.S.C. § 40102(23)(E). This is a limited admission of responsibility for otherwise lawful and applicable charges, not an admission that the challenged charges were shown to be applicable, and not a waiver of 46 U.S.C. § 41104(d)-(f) or 46 C.F.R. Part 541.

6. Global Kings Logistics Inc. is a separate corporation. It is not a complainant, and no relief is requested on its behalf. The official FMC records identify Kamordeen Ganiu as sole proprietor and Global Kings Logistics as his d/b/a. MLA-APP 61-62. Ocean Carrier Agreement No. 23-031AFR likewise identifies KAMORDEEN A. GANIU d/b/a GLOBAL KINGS LOGISTICS as Shipper and does not identify Global Kings Logistics Inc. as the contracting shipper. MLA-APP 4-5.

7. Respondent MSC S.A. is a Swiss company with its principal place of business at 12-14 Chemin Rieu, 1208 Geneva, Switzerland. Its known notice email is CH001-corporatelegal.notices@msc.com. The three bills of lading identify MSC S.A. as carrier. MLA-APP 40-42.

8. Respondent MSC USA is retained as a respondent in this amended complaint. The challenged invoice identifies MSC USA as agent for MSC S.A., and the bills of lading state that MSC USA signed as agent on behalf of MSC S.A. MLA-APP 37, 40-42. MSC USA is named both because it issued the challenged invoice on its own letterhead and because it later pursued collection of the resulting account balance, expressly as agent for MSC S.A., in a New York state-court action described below. Acts alleged below are attributed to MSC S.A. as principal and to MSC USA as the agent that performed them.

III. JURISDICTION AND LEGAL AUTHORITY

9. The Commission has subject-matter jurisdiction under 46 U.S.C. § 41301 because this complaint alleges violations of 46 U.S.C. §§ 41104(a)(14), 41104(a)(15), 41104(d), 41104(f), and 41102(c), together with 46 C.F.R. §§ 541.5 and 541.6. An NVOCC is a shipper in its relationship with an ocean common carrier under 46 U.S.C. § 40102(17)(B), and Ganiu also qualifies as a shipper under § 40102(23)(E).

10. MSC S.A. is subject to those provisions because the bills of lading identify it as the ocean common carrier responsible for the transportation, and the invoice identifies MSC USA as acting for MSC S.A. MLA-APP 37, 40-42. MSC USA is subject to those provisions because it issued the noncompliant invoice on its own letterhead and thereafter engaged in the collection conduct

described below.

11. The challenged invoice was issued on August 1, 2024, after 46 C.F.R. Part 541 became effective on May 28, 2024. MLA-APP 37. This complaint does not apply Part 541 to the separate August 22, 2023 invoice shown at MLA-APP 36.

IV. PARTICULARIZED FACTUAL ALLEGATIONS

12. The challenged document is invoice number UAC3MEDUU0072980, dated August 1, 2024. Its letterhead identifies Mediterranean Shipping Company (USA) Inc. "As Agent For MSC S.A. Geneva"; it states that the invoice was issued by the UAC Department; and it is addressed to GLOBAL KINGS LOGISTICS at Ganiu's Brooklyn address. MLA-APP 37.

13. For bill of lading MEDUU0072980 and container MSMU7052954, the invoice assessed \$26,204.00 in demurrage and \$3,348.19 in ocean freight. The bill of lading shows a Houston, Texas port of loading and Tin Can Island, Lagos, Nigeria as port of discharge. MLA-APP 37, 40.

14. For bill of lading MEDUU4390743 and container MSDU7177507, the invoice assessed \$27,809.00 in demurrage and \$3,894.16 in ocean freight. The bill of lading shows New York, New York as port of loading and Tin Can Island, Lagos, Nigeria as port of discharge. MLA-APP 37, 41.

15. For bill of lading MEDUU6529488 and container FFAU2927643, the invoice assessed \$30,125.00 in demurrage and \$4,625.38 in ocean freight. The bill of lading shows New York, New York as port of loading and Tin Can Island, Lagos, Nigeria as port of discharge. MLA-APP 37, 42.

16. The three demurrage line items total \$84,138.00. The three ocean-freight line items total \$11,867.73. The invoice total is \$96,005.73. MLA-APP 37.

17. A separate August 22, 2023 invoice totaled \$22,481.80, including a \$2,950.00 export-demurrage line item that the later reconciliation shows as credited. MLA-APP 36, 38. The remaining \$19,531.80 from that earlier invoice plus the \$96,005.73 August 1, 2024 invoice produced the \$115,537.53 account balance later pursued in New York. MLA-APP 38.

18. Complainant does not allege that the entire \$115,537.53 account balance is demurrage or detention. The invoice-supported demurrage subset challenged in this complaint is \$84,138.00. The \$11,867.73 in ocean freight and the \$19,531.80 remainder from the earlier invoice are not included in the § 41104(d) claim.

19. The August 1, 2024 invoice includes the three bill-of-lading numbers, three container numbers, port of discharge, invoice date, and lump-sum demurrage amounts. MLA-APP 37.

20. The invoice does not state the invoice due date, container-availability date, allowed free time in days, start or end date of free time, earliest return date for the export shipments, or the specific dates for which demurrage was charged. MLA-APP 37.

21. The invoice does not identify the applicable tariff, service-contract provision, or other demurrage rule on which a daily rate was based, and it does not state the specific daily rate or rates used to calculate any of the three lump-sum demurrage amounts. MLA-APP 37.

22. The invoice does not state the basis for treating the billed party as the proper party of interest and liable for the charges. Its address line says only GLOBAL KINGS LOGISTICS. MLA-APP 37.

23. Although the letterhead displays general office telephone and fax numbers, the invoice does not identify a dispute website or other digital means directing the billed party to documentation explaining how to request fee mitigation, refund, or waiver, and it does not state the applicable timeframes for requesting or resolving such relief. MLA-APP 37.

24. The invoice does not certify that the charges comply with Commission demurrage-and-detention rules, and it does not certify that the billing party's performance did not cause or contribute to the charges. MLA-APP 37.

25. Because these required fields were omitted, Complainant could not determine from the invoice the charge dates, free time, governing rule, daily rate, reason for liability, dispute procedure, whether the charges were applicable under the governing tariff or service contract, or whether carrier conduct contributed to the charges.

26. The corresponding bills of lading identify MSC S.A. as the carrier and state that MSC USA signed as agent on MSC S.A.'s behalf. MLA-APP 40-42. They do not supply the missing invoice-specific free-time calculations, demurrage dates, daily rates, mitigation procedure, or certifications.

27. On August 6, 2025, MSC USA, expressly captioned as agent for MSC S.A., filed a New York complaint seeking the \$115,537.53 mixed account balance from Ganiu t/a Global Kings Logistics and Global Kings Logistics Inc. MLA-APP 28-31.

28. On November 3, 2025, a default judgment was entered for \$128,883.96, consisting of the \$115,537.53 principal plus interest, costs, and disbursements. MLA-APP 33-34.

29. The New York documents are offered only as public records relevant to agency, collection conduct, asserted injury, and the common factual nucleus underlying Count III below. They are not offered to transform MSC USA into the carrier or to ask the Commission to alter the judgment.

V. CLAIMS FOR RELIEF

COUNT I

Noncompliant Demurrage Invoice — 46 U.S.C. § 41104(a)(15), (d), and (f); 46 C.F.R. §§ 541.5-541.6

30. Complainant repeats paragraphs 1 through 29.

31. Section 41104(a)(15) prohibits a common carrier from invoicing demurrage or detention unless the invoice contains the information described in § 41104(d). Section 41104(f) eliminates the charged party's payment obligation when information required by subsection (d) is omitted.

32. For invoices issued on or after May 28, 2024, 46 C.F.R. § 541.6 requires accurate identifying, timing, rate, dispute, and certification information. Section 541.5 eliminates the billed party's payment obligation when any required minimum information is omitted.

33. MSC S.A., through its disclosed agent MSC USA, issued invoice UAC3MEDUU0072980 on August 1, 2024, and assessed three demurrage charges totaling \$84,138.00. MLA-APP 37.

34. The invoice omitted the specific required information identified in paragraphs 20 through 24 above.

35. The omissions violated § 41104(a)(15), and the payment obligation for each affected demurrage charge was eliminated under § 41104(f) and 46 C.F.R. § 541.5.

COUNT II

Assessment of Charges Inconsistent with Applicable Law — 46 U.S.C. § 41104(a)(14)

36. Complainant repeats paragraphs 1 through 35.

37. Section 41104(a)(14) prohibits a common carrier from assessing a party for a charge inconsistent with or noncompliant with applicable statutory provisions and regulations.

38. MSC S.A. assessed, and MSC USA later pursued, the three specifically identified demurrage charges even though the August 1, 2024 invoice omitted information required by §§ 41104(a)(15), 41104(d), and 46 C.F.R. § 541.6.

39. The challenged assessment under Count II is limited to the same \$84,138.00 demurrage subset and does not include the separately stated ocean freight or the earlier non-demurrage balance.

COUNT III

Unjust and Unreasonable Practice — 46 U.S.C. § 41102(c)

40. Complainant repeats paragraphs 1 through 39.

41. Section 41102(c) prohibits a common carrier, and those acting on its behalf, from failing to establish, observe, and enforce just and reasonable regulations and practices relating to the receiving, handling, and delivering of property, including the assessment and collection of charges.

42. MSC S.A. and MSC USA engaged in a pattern of conduct that was unjust and unreasonable within the meaning of § 41102(c): MSC USA issued a demurrage invoice that omitted the specific information required by § 41104(d) and 46 C.F.R. § 541.6; MSC S.A. and MSC USA thereafter folded the noncompliant demurrage charges into a combined account balance without correcting or withdrawing the deficient invoice; and MSC USA, as agent for MSC S.A., pursued collection of that combined balance in New York state court against both Complainant d/b/a Global Kings Logistics and against Global Kings Logistics Inc., a separate corporation that Complainant alleges was not the contracting shipper under Ocean Carrier Agreement No. 23-031AFR. MLA-APP 4-5, 28-34, 37.

43. This count is limited to the described billing and collection pattern and the resulting exposure to Complainant. It does not ask the Commission to determine the rights of Global Kings Logistics Inc., which is not a complainant here, and it does not ask the Commission to vacate, modify, or enjoin the New York judgment.

VI. INJURY AND REPARATION DEMAND

44. The three challenged demurrage assessments exposed Complainant to an asserted payment obligation of \$84,138.00, which was included in the later account demand and judgment principal. MLA-APP 37-38, 33-34.

45. Complainant requests a determination under § 41104(f) that no payment obligation arose for the three noncompliant demurrage charges totaling \$84,138.00.

46. Complainant requests reparations up to \$84,138.00, but only to the extent the evidence proves actual injury in the form of amounts paid, collected, restrained, levied, or otherwise lost because of the challenged charges and practices, together with statutory commercial interest. He does not contend that the state judgment alone proves the amount of reparations, and he does not seek the separately stated freight or earlier non-demurrage amounts as reparations under this invoice claim.

VII. RELIEF REQUESTED

47. Find that MSC S.A. and MSC USA violated 46 U.S.C. §§ 41104(a)(14) and 41104(a)(15) by assessing and invoicing the three demurrage charges through the noncompliant August 1, 2024 invoice.

48. Find that MSC S.A. and MSC USA engaged in an unjust and unreasonable practice under 46 U.S.C. § 41102(c) as described in Count III.

49. Determine under 46 U.S.C. § 41104(f) and 46 C.F.R. § 541.5 that no payment obligation arose for the three challenged demurrage charges totaling \$84,138.00.

50. Award reparations up to \$84,138.00, jointly and severally against MSC S.A. and MSC USA to the extent each is found liable, limited to the amount proved to constitute actual injury caused by the violations, with statutory commercial interest as authorized by 46 U.S.C. § 41305.

51. Order MSC S.A. and MSC USA to cease and desist from future issuance or assessment of demurrage or detention invoices to Complainant that omit information required by 46 U.S.C. § 41104(d) or 46 C.F.R. § 541.6, and from further collection practices inconsistent with § 41102(c), without purporting to vacate, modify, or enjoin the New York judgment.

52. Permit discovery concerning invoice UAC3MEDUU0072980, the three bills of lading and containers, charge-accrual dates, free-time calculations, applicable rules and rates, billing and collection roles as between MSC S.A. and MSC USA, amounts paid or collected, and actual injury.

53. Grant such other relief within the Commission's authority as the record supports.

VIII. ORAL HEARING

54. Complainant requests an oral hearing by videoconference, or alternatively in New York, New York, concerning disputed invoice compliance, agency, collection practices, and actual injury. The Presiding Officer may determine whether an oral hearing is necessary.

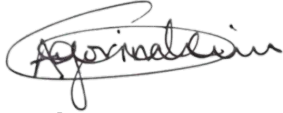
IX. VERIFICATION

I, Kamordeen A. Ganiu, declare under penalty of perjury under the laws of the United States that I have read the foregoing Proposed Verified First Amended Complaint, that the factual allegations stated from

my personal knowledge are true and correct, and that allegations based on the cited public documents are true and correct to the best of my knowledge after reviewing those documents.

Executed on July 18, 2026.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Kamordeen A. Ganiu', enclosed within a hand-drawn oval.

/s/ Kamordeen A. Ganiu

Kamordeen A. Ganiu

Complainant pro se, individually and d/b/a Global Kings Logistics

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Dated: July 18, 2026